IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF VIRGINIA
Alexandria Division

TAMARIS (GIBRALTAR) LIMITED,

Plaintiff,

v.

ALEKSANDR ROGONOV,

and

JOHN DOES 1-8,

Defendants.

Case No. 1:26-cv-3298

COMPLAINT

Tamaris (Gibraltar) Limited operating as Pragmatic Play ("Pragmatic Play") ("Pragmatic Play" or "Plaintiff"), by counsel, alleges as follows as its Complaint against Defendants Aleksandr Rogonov and John Does 1–8, who are owners, operators, financers, or otherwise acting in concert or participation with the gamblingcounting.com website seeking, *inter alia*, disabling of the website that is being used to redistribute and display unauthorized copies of Pragmatic Play's live casino games and the PRAGMATIC PLAY trademarks without authorization by streaming live data feeds of Pragmatic Play's live casino games.

The explicit purpose of Defendants' website, gamblingcounting.com, is to facilitate and encourage unlawful cheating in online games. Unless enjoined by this Court, Defendants' illicit website is already harming, and will continue to harm, Pragmatic Play and its customers by damaging the goodwill associated with the PRAGMATIC PLAY Marks and the trust in the legitimacy and fairness of Pragmatic Play's games.

NATURE OF THE SUIT

1. This is an action for trademark infringement and counterfeiting under the Lanham Act, 15 U.S.C. §§ 1114 and 1116(d)(1), and copyright infringement under the Copyright Act, 17 U.S.C. § 101, *et seq*., against Defendants.

2. Pragmatic Play's invaluable rights in the distinctive PRAGMATIC PLAY trademarks and Pragmatic Play's copyright-protected works have been deliberately infringed through unauthorized use of the PRAGMATIC PLAY trademarks and copyright-protected games by Defendants' hosting of unauthorized live data feeds of Pragmatic Play's games.

PARTIES

3. Plaintiff Tamaris (Gibraltar) Limited is a Gibraltar limited company with a principal business address of Madison Building, Midtown, Queensway Gibraltar.

4. Defendant Aleksandr Rogonov ("Rogonov") is, or purports to be, an individual who is the registered owner of the gamblingcounting.com domain name. Based on information and belief, Rogonov operates gamblingcounting.com and is responsible for the content displayed at gamblingcounting.com. Based on domain name registration records associated with Aleksandr Rogonov, he uses the email address arogonov@gmail.com and provided the domain registrar a purported address of "Beli Iskr 2 ap 8, Sofia/Sofia/1527."

5. Defendants John Does 1–8 are entities or individuals who operate and/or finance the gamblingcounting.com website and/or are acting in concert and participation with those who operate the gamblingcounting.com website.

6. Plaintiff refers to Aleksandr Rogonov and John Does 1–8 collectively as "Defendants."

JURISDICTION, VENUE, AND JOINDER

7. This is a civil action for trademark counterfeiting and infringement under the Lanham Act, 15 U.S.C. § 1114(1), and for copyright infringement under the Copyright Act, 17 U.S.C. § 101 *et seq*.

8. This Court has original jurisdiction under 15 U.S.C. § 1121(a), 17 U.S.C. § 101, *et seq*., and 28 U.S.C. §§ 1331 and 1338(a).

9. Pragmatic Play's claims against Defendants for trademark counterfeiting, trademark infringement, and copyright infringement are based on Defendants' misuse of Pragmatic Play's trademarks and copyright-protected works to redistribute and display unauthorized copies of Pragmatic Play's live casino games and the PRAGMATIC PLAY trademarks by hosting unauthorized data feeds of Pragmatic Play's live casino games.

10. This Court has personal jurisdiction over Defendants pursuant to Fed. R. Civ. P. 4(k)(2)(B). Rogonov claims to live in Bulgaria and is not subject to jurisdiction in any state's courts of general jurisdiction, Pragmatic Play's claims arise under federal law and "exercising jurisdiction is consistent with the United States Constitution and laws." *See* Fed. R. Civ. P. 4(k)(2)(B).

11. On information and belief, John Does 1-8 are also not subject to jurisdiction in any state's courts of general jurisdiction, and therefore this Court personal jurisdiction lies over Defendants pursuant to Fed. R. Civ. P. 4(k)(2)(B).

12. While the extent of Defendants' operations within the United States is not clear, exercising jurisdiction over Defendants is consistent with the limits of due process because, at the very least, Defendants have operated the gamblingcounting.com website through extensive use of U.S.-based service providers and instrumentalities including, without limitation, a U.S. based

domain registry, domain registrar, content delivery network (CDN) provider, hosting provider, and email service provider.

13. Venue lies in this District because Defendants are "not resident in the United States" and may be sued in any judicial district. 28 U.S.C. § 1391(c)(3).

14. Venue also lies in this District because "a substantial part of the events or omissions giving rise to the claim occurred, or a substantial part of property that is the subject of the action is situated" in this district. 28 U.S.C. § 1391(b)(2).

15. Joinder of Defendants is proper under Fed. R. Civ. P. 20(a)(2) in that the claims set forth herein arise out of the same series of transactions, and the same questions of law are common to all Defendants. The claims against all Defendants involve the same questions of both fact and law, including whether the Defendants have engaged in trademark and copyright infringement through the operation of the gamblingcounting.com website.

PLAINTIFF'S RIGHTS

16. Tamaris (Gibraltar) Limited, operating as Pragmatic Play, is the proprietor of Pragmatic Play's intellectual property, which encompasses trademarks, copyrights, and other assets. Pragmatic Play is a leading developer and provider of mobile and desktop casino games for the online gaming industry.

17. Since 2016, Pragmatic Play has actively and continuously offered a wide range of games under the PRAGMATIC PLAY trademark to operators in various jurisdictions.

18. The PRAGMATIC PLAY mark is often used as a word mark and displayed as plain text. At times, the PRAGMATIC PLAY mark is displayed in a stylized form with a design, as shown below:



Pragmatic Play has consistently used this composite mark in association with its gaming services for several years (collectively with the PRAGMATIC PLAY word mark, the "PRAGMATIC PLAY Marks").

19. Since receiving its first gaming license in 2016, Pragmatic Play has acquired licenses in numerous regulated markets.

20. Pragmatic Play offers an array of games under the PRAGMATIC PLAY Marks, including online slot games, live casino games, bingo, and virtual sports.

21. Pragmatic Play has actively participated in marketing activities such as year-round public relations campaigns that ensure brand momentum, paid and earned content marketing including webinars, feature stories, and interviews, paid advertising including display banners and newsletter sponsorship, sponsored and attended both physical and virtual events including EGR Awards, Sigma, and SBC, and social media including LinkedIn, Twitter, Facebook, and Instagram, and constant recognition as a leading supplier across tier-I industry awards. All of these efforts prominently feature the PRAGMATIC PLAY Marks.

22. Pragmatic Play began publishing gaming content through use of the PRAGMATIC PLAY Marks in 2015.

23. Consumers have come to distinguish and recognize the legitimacy of Pragmatic Play's services as a result of the use and widespread promotion of the PRAGMATIC PLAY Marks.

24. Due to the financial element inherent in online gaming, Pragmatic Play is constantly combating malicious third parties' attempts to misuse the PRAGMATIC PLAY Marks to confuse, mislead, and/or deceive consumers.

25. To protect both its consumers and its valuable marks, Pragmatic Play has engaged in significant enforcement efforts relating to its intellectual property. Its efforts include defensive domain name registrations, administrative proceedings under the Uniform Domain Name Dispute Resolution Policy, take-down notices, and anti-cybersquatting actions, including litigation in this Court. *See Tamaris (Gibraltar) Ltd. v. Vasilyevich*, No. 1:24-cv-1146 (E.D. Va. July 2, 2024); *Tamaris (Gibraltar) Ltd. v. John Does 1-9*, No. 1:24-cv-109 (E.D. Va. Jan. 23, 2024); *Tamaris (Gibraltar) Ltd. amppragmaticplay.com*, No. 1:24-cv-748 (E.D. Va. May 3, 2024); *Tamaris (Gibraltar) Limited v. Amppragmaticplay.com*, No. 1:24-cv-748 (E.D. Va. May 3, 2024); *Tamaris (Gibraltar) Limited v. John Does 1-9*, No: 1:24-cv-109 (E.D. Va. Jan. 23, 2024); *Tamaris (Gibraltar) Limited v. ppgamesusa.com et al.*, No. 1:23-cv-1692 (E.D. Va. Dec. 12, 2023); *Pragmatic Play International Ltd. v. Does 1-10*, No. 1:23-cv-188 (E.D. Va. Feb. 10, 2023); *Tamaris (Gibraltar) Limited v. pragmaticplays.co et al.*, No. 2:24-cv-00009 (D. Ariz. Jan. 3, 2024); *PragmaticPlay Int'l Ltd. v. Agenpragmaticplay.live*, No. 2:23-cv-497 (D. Ariz. Mar. 23, 2023); *PragmaticPlay Int'l Ltd. v. Agen-pragmaticplay.org*, No. 1:23-cv-174 (E.D. Va. Feb. 7, 2023); *PragmaticPlay Int'l Ltd. v. 51ppgame.com*, No. 1:22-cv-1016 (E.D. Va. Sept. 8, 2022); *PragmaticPlay Int'l Ltd. v. 789pragmaticplay.com*, No. 1:22-cv-835 (E.D. Va. July 22, 2022).[1]

26. These enforcement efforts are critical to Pragmatic Play's ability to protect its brand as a responsible and trustworthy provider of online gaming experiences.

27. Based on Pragmatic Play's extensive use and promotion of the PRAGMATIC PLAY Marks and the recognition and goodwill the marks have achieved in the eyes of the

[1] Past actions asserting these trademark rights have been brought by Pragmatic Play International Ltd. as the plaintiff. In 2023, Pragmatic Play underwent corporate restructuring, during which the trademark rights and that portion of the business to which the rights pertained were transferred to Tamaris (Gibraltar) Limited.

consuming public, the PRAGMATIC PLAY Marks are distinctive and/or famous and are entitled to broad common law trademark rights. *Tamaris (Gibraltar) Ltd. v. Vasilyevich*, No. 1:24-CV-01146 (AJT/LRV), 2025 WL 1673901, at *1 (E.D. Va. Feb. 10, 2025), *R&R adopted*, No. 1:24-CV-1146 (AJT/LRV), 2025 WL 763100 (E.D. Va. Mar. 10, 2025).

28. The gamblingcounting.com website displays unauthorized imitations of the PRAGMATIC PLAY Marks, which further demonstrates that the PRAGMATIC PLAY Marks are distinctive and were famous and/or distinctive prior to the time of unauthorized use by the gamblingcounting.com website.

29. In addition to its common law trademark rights, Pragmatic Play possesses statutory rights in the PRAGMATIC PLAY Marks by virtue of its ownership of U.S. trademark registrations for both the PRAGMATIC PLAY word mark and composite mark, directed to "Entertainment services, namely, providing games of chance via the Internet," U.S. Reg. Nos. 6848492, 6890979, 7307616, 7330411, and 7773162. Copies of these registrations are attached as Exhibit A.

30. Below is a representative selection of Pragmatic Play's U.S. federal trademark registrations for the PRAGMATIC PLAY Marks.

Reg. No.	**Mark**	**Registered Services**
7307616	PRAGMATIC PLAY	Downloadable software for playing casino games, slot games, mobile games, lottery games, online wagering games and online electronic games.
7330411	PRAGMATIC PLAY	Downloadable software for playing casino games, slot games, mobile games, lottery games, online wagering games and online electronic games.

6848492	PRAGMATIC PLAY	Entertainment services, namely, providing games of chance via the Internet.
6890979		Entertainment services, namely, providing games of chance via the Internet.
7773162		Downloadable software for playing casino games, slot games, mobile games, lottery games, online wagering games and online electronic games; Gaming machines, namely, devices which accept a wager; Entertainment services, namely, providing games of chance via the Internet.

31. Pragmatic Play also possesses statutory rights in a number of U.S. trademark registrations related to its individual games.

32. Below is a representative selection of Pragmatic Play's U.S. federal trademark registrations for Pragmatic Play's game marks that have been copied and used without authorization by Defendants. Copies of these registrations are attached as Exhibit B.

Reg. No.	**Mark**	**Registered Services**
8258537	MEGA ROULETTE	Entertainment services, namely, providing games of chance via the Internet
7477526		Entertainment services, namely, providing games of chance via the Internet.

33. In addition to its trademark rights in the PRAGMATIC PLAY Marks, Pragmatic Play is also the author and owner of the live performances and livestream broadcasts of its games,

as well as all live data feeds, images, graphics, video and sound recordings, and software code associated with its games, which are creative and original expressions entitled to copyright protection ("Pragmatic Play's Works").

34. Pragmatic Play's Works contain creative material wholly original to Pragmatic Play and are copyrightable subject matter under the copyright laws of the United States. Pragmatic Play possesses copyright rights in Pragmatic Play's Works.

35. Pragmatic Play's Works are non-U.S. works that were first published outside of the United States and are exempt from the copyright registration requirements of 17 U.S.C. § 411.

DEFENDANTS' WEBSITE DISPLAYS RAMPANT MISUSE OF PRAGMATIC PLAY'S TRADEMARKS AND WORKS

36. This action arises out of Defendants' redistributing and displaying unauthorized copies of Pragmatic Play's live casino games and the Pragmatic Play Marks by hosting unauthorized live data feeds of Pragmatic Play's live casino games. Specifically, the gamblingcounting.com website makes unauthorized use of the PRAGMATIC PLAY Marks and Pragmatic Play's Works by streaming live data feeds of Pragmatic Play's online games without authorization and for an improper purpose.

37. The gamblingcounting.com website engages in unauthorized copying and display of Pragmatic Play's copyright-protected materials including live performances, livestreams, data feeds, images, video and sound recordings, and software code by livestreaming Pragmatic Play's online games without permission.

38. Defendants' live data feeds on the gamblingcounting.com website are not affiliated with Pragmatic Play and use the PRAGMATIC PLAY Marks in a manner likely to confuse consumers regarding whether gamblingcounting.com is providing genuine, unaltered Pragmatic Play games.

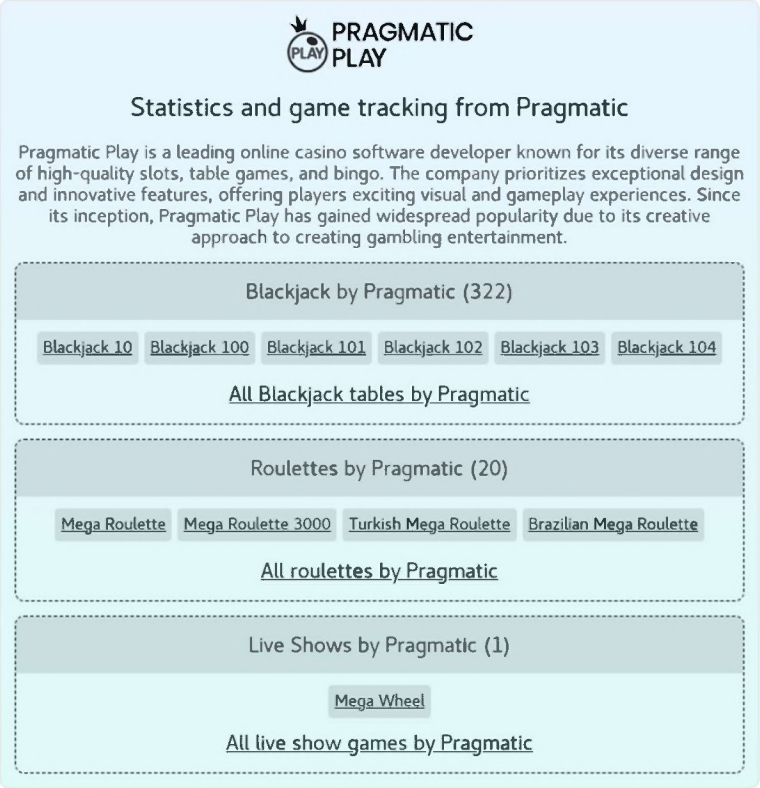
39. Upon information and belief, the gamblingcounting.com website is used by players who access the gamblingcounting.com website from around the world including, without limitation, by players within the United States and the District.

40. The gamblingcounting.com website is operated through extensive use of U.S.-based service providers including, without limitation, a U.S.-based domain registry, domain registrar, CDN provider, hosting provider, and email service provider.

41. Defendants' website features a "provider" subpage that uses the Pragmatic Play design mark with the description "Statistics and game tracking from Pragmatic," followed by a description of Pragmatic Play as "a leading online casino software developer known for its diverse range of high-quality slots, table games, and bingo." *See* Provider, Gambling Counting, https://gamblingcounting.com/provider.



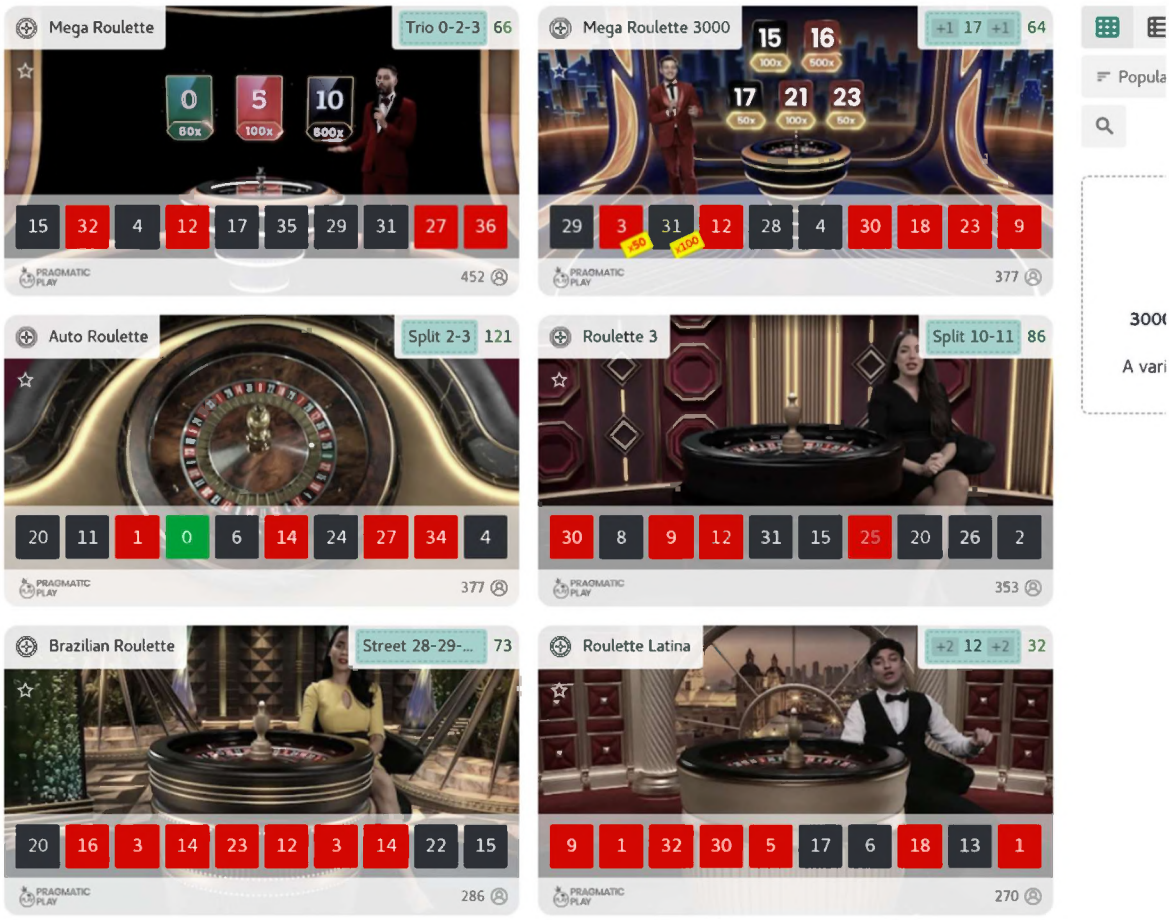
42. Defendants' website offers over 300+ Pragmatic Play games, all identified by Pragmatic Play's word and design marks:



43. The following screen captures are further examples of the extensive copying of Pragmatic Play's legitimate websites and games by Defendants and unauthorized use of the PRAGMATIC PLAY Marks and Pragmatic Play's Works on the gamblingcounting.com website:

Statistics, tracking, and results of online roulettes from Pragmatic

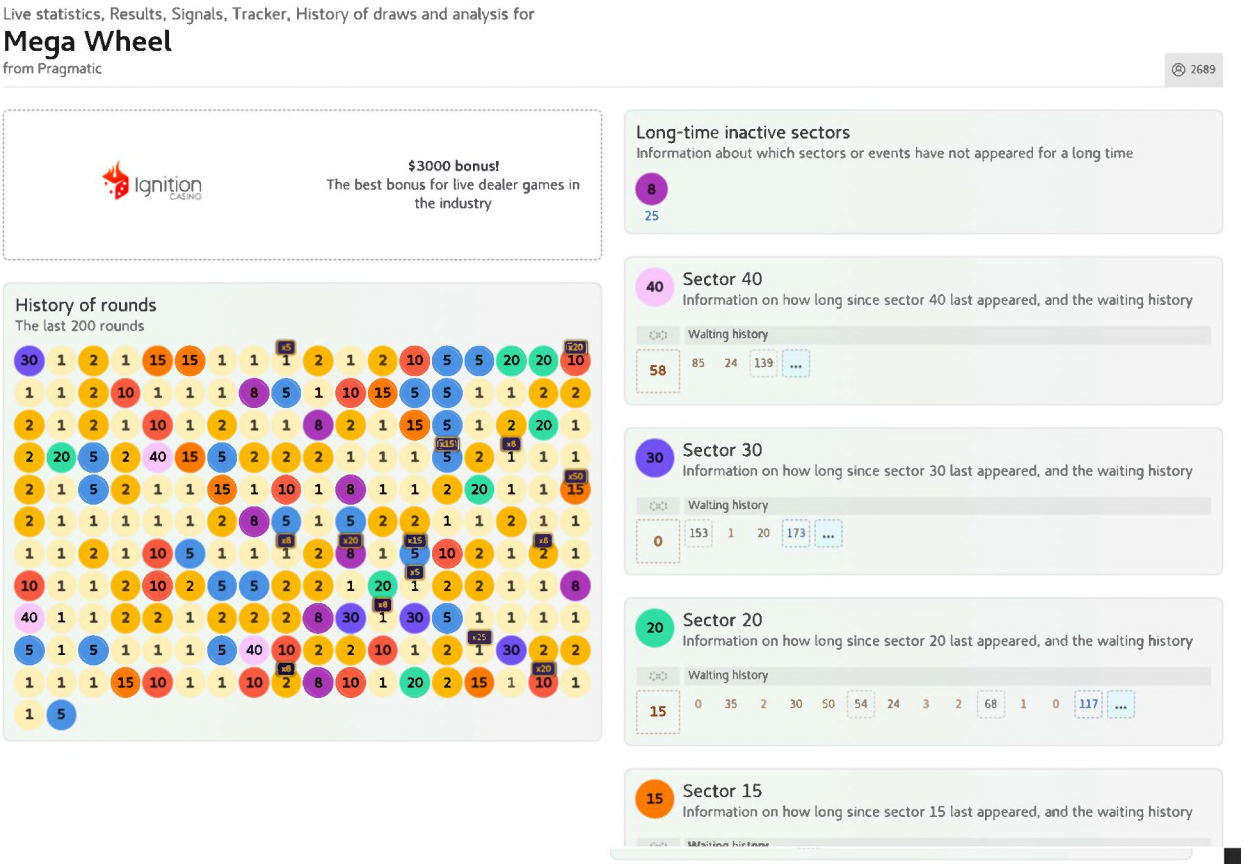
Real-time detailed statistics on online roulettes from Pragmatic



Real-time roulette statistics and tracking from provider Pragmatic

Statistics include a variety of data, such as the frequency of numbers, colors, dozens, neighbors on the roulette wheel, sectors, and much more. The tracker interface ensures transparency and openness, allowing players to make more informed decisions based on the provided information.

Such a tracker is a useful tool for analyzing trends and patterns in games, which can help players develop their strategies and increase their chances of success. All this creates an engaging and interactive experience for gambling enthusiasts, providing them with access to important real-time data.



Mega Wheel Tracker (Track Casino)

Track every round live and predict the results using strategies and analytics.

Mega Wheel Signals

A key section for all players aiming to maximize their chances of winning. Here you will find detailed analytical data and strategic approaches that allow you to better understand the dynamics of the game and make informed bets.

Mega Wheel Stats & History

An extensive dataset allowing for the analysis of past results and prediction of possible outcomes. This section provides players with valuable information about the frequency of various payouts, helping to build their strategies more thoroughly.

Mega Wheel Telegram bot

This is an innovative tool that will help you keep track of all the events in the game right on your mobile device. Receive instant notifications about the start of new games, changes in rules, and other important updates. Thanks to this bot, you will always be informed and able to act promptly to increase your chances of winning in the exciting game Mega Wheel.

About the game Mega Wheel

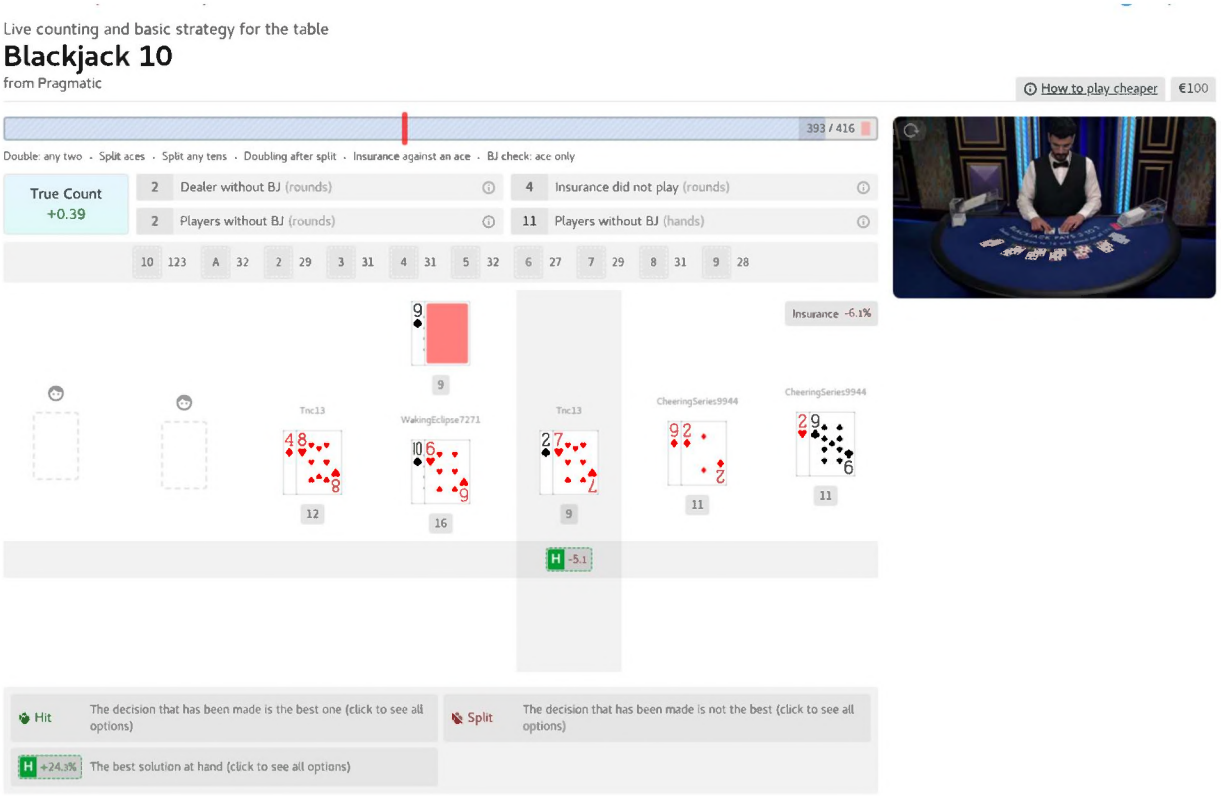
Mega Wheel by Pragmatic Play is an exciting and easy-to-learn game that offers players a unique gambling experience. It is inspired by traditional wheels of fortune. The game attracts with its colorful design, high-quality animation, and exciting sound accompaniment, creating an atmosphere of a real gambling establishment.

The goal of the Mega Wheel game is to guess which sector the spinning wheel will stop at. Possible bets and winnings depend on the chosen sector, adding an element of strategy and interaction for players. Among the various bets that can be made include numbers, multipliers, and other special sectors, offering different chances of winning.

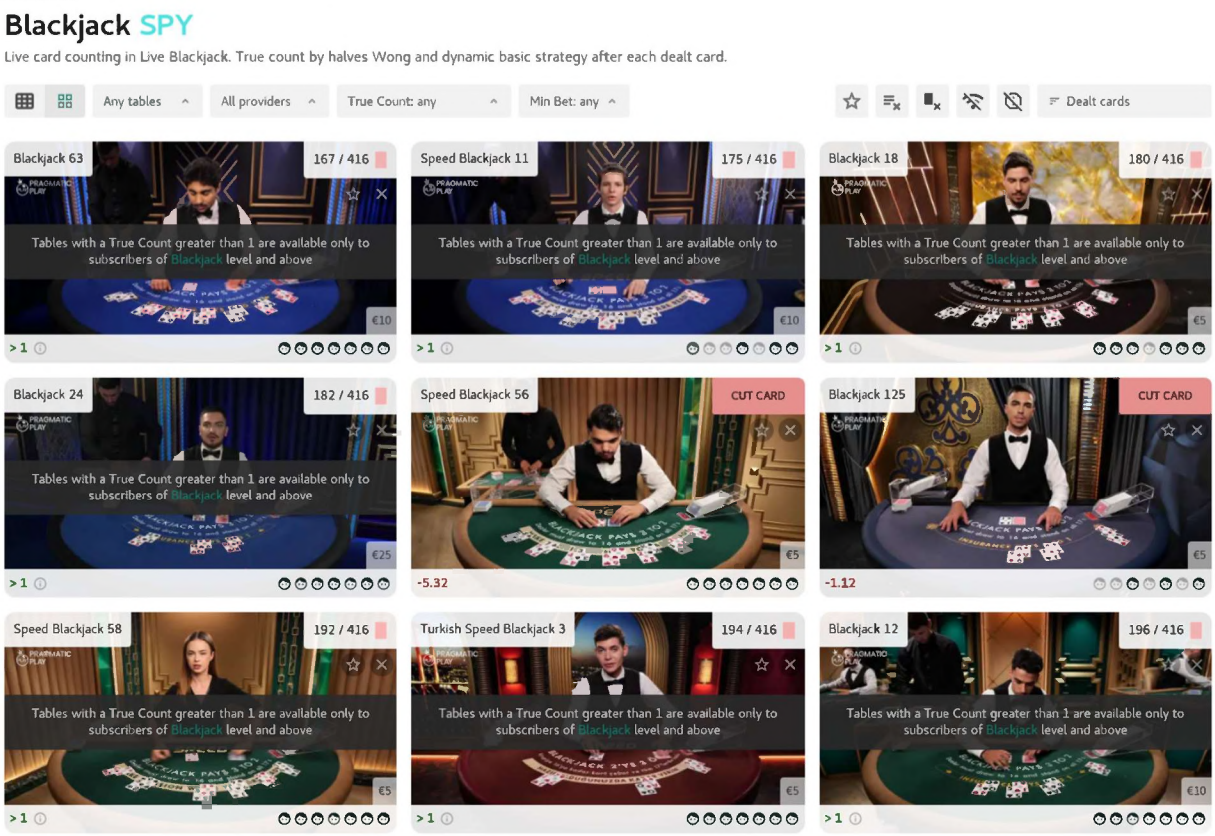
Mega Wheel also has a real-time chat feature, which allows players to communicate with each other and with the dealer, making the gaming process even more interactive and social. Thanks to its dynamic and exciting game mechanics, Mega Wheel becomes a popular choice among those who love to test their luck and get an exciting gambling experience.

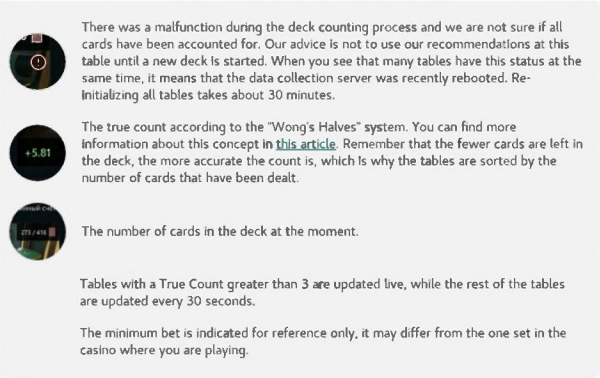
Waiting history

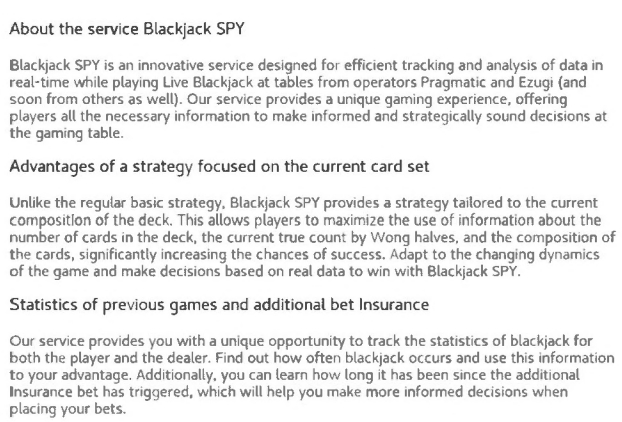
The per-sector blocks of the Mega Wheel game by Pragmatic Play show how long each sector has been absent, as well as the waiting history: how many rounds passed between its appearances in the past. Analyzing this data helps players take the wheel's current trends into account when making decisions.



Online counting of cards on the table Blackjack 10 from Pragmatic. Follow the game, follow the recommendations and get maximum profit and enjoyment from the game







44. The above screenshots from the gamblingcounting.com website include unauthorized streaming of Pragmatic Play's games, including MEGA ROULETTE and Blackjack.

45. The above screenshots further demonstrate how the gamblingcounting.com website allows and encourages cheating while playing Pragmatic Play's games. Forensic copies of the above screenshots are attached as Exhibit C.

DEFENDANTS' UNAUTHORIZED LIVE DATA FEEDS OFFER CONSUMERS THE ABILITY TO CHEAT ON PRAGMATIC PLAY'S GAMES

46. State laws from across the U.S. make it unlawful to use any mechanical device, computer hardware, or computer software to gain an advantage in casino games—including, without limitation, software used to project the outcome of a game, keep track of cards played or prepared for the game, and/or analyze the probability of an occurrence relating to the game. See, e.g., Nev. Rev. Stat. § 465.075; N.J. Stat. Ann. § 5:12-114; 4 Pa. Cons. Stat. § 1518; Miss. Code Ann. § 75-76-137.

47. The explicit purpose of Defendants' website is to offer consumers the ability to cheat on online gambling, including Pragmatic Play, by providing the types of software functionalities that are outlawed throughout the U.S.

48. Among the services offered on gamblingcounting.com is a service called Blackjack SPY, which is marketed as an "innovative service designed for efficient tracking and analysis of data in real-time while playing Live Blackjack" and "offering players all the necessary information to make informed and strategically sound decisions at the gaming table." Blackjack SPY, Gambling Counting, https://gamblingcounting.com/blackjack/spy/.

49. Defendants' website explicitly lists Pragmatic Play as a provider of games being streamed on Defendant's website. *Id.*

50. As a regulated and responsible provider of online gaming experiences, "Pragmatic Play's games are regularly reviewed by independent bodies that are formally accredited to ensure both randomness and fairness." *See* We are Pragmatic Play, Pragmatic Play, https://www.pragmaticplay.com/en/about-us/.

51. Use of external statistical analysis of the type offered by Defendant's Blackjack SPY software violates numerous state gaming laws, violates Pragmatic Play's gaming rules, and cheats other players out of the fair gaming experience customers have come to expect from legitimate Pragmatic Play games.

52. Pragmatic Play's Terms of Use provide that "[t]o the extent that any material may be downloaded or printed then such material may be downloaded to a single personal computer only and hard copy portions may be printed solely for your own personal and non-commercial use." *Id.* Defendants' rampant copying and commercial distribution of Pragmatic Play's works violates these restrictions.

COUNT ONE:
(Trademark Infringement)

53. Pragmatic Play repeats and realleges each and every allegation set forth in the foregoing paragraphs, as though fully set forth herein.

54. Defendants are using the PRAGMATIC PLAY Marks in commerce and have no valid rights in the PRAGMATIC PLAY Marks.

55. Defendants have actual and/or constructive notice, pursuant to Section 22 of the Lanham Act, 15 U.S.C. § 1072, of the existence of Pragmatic Play's superior rights in its PRAGMATIC PLAY Marks by reason of the existence of Pragmatic Play's aforementioned federal trademark registrations.

56. Defendants' use of the PRAGMATIC PLAY Marks is without the permission or authorization of Pragmatic Play.

57. Defendants are using marks that are identical with, or substantially indistinguishable from, the PRAGMATIC PLAY Marks on services covered by the federal registrations for such marks, including, for example, the gamblingcounting.com website that redistributes and/or displays unauthorized copies of Pragmatic Play's live casino games and the Pragmatic Play Marks by hosting unauthorized data feeds of Pragmatic Play's live casino games.

58. The unauthorized use by Defendants of the PRAGMATIC PLAY Marks as set forth above is likely to: (a) cause confusion, mistake, and deception; (b) cause the public to believe that the products and/or services offered by Defendants are authorized, sponsored, or approved by Pragmatic Play or that Defendants are affiliated, connected, or associated with or in some way related to Pragmatic Play; and (c) result in Defendants' unfairly benefitting from Pragmatic Play's advertising and promotion and profiting from the reputation of Pragmatic Play and the PRAGMATIC PLAY Marks all to the substantial and irreparable injury of the public and Pragmatic Play.

59. Defendants' acts constitute direct infringement of Pragmatic Play's trademark rights in violation of Section 32(1) of the Lanham Act, 15 U.S.C. § 1114.

60. Defendants' acts have caused, and are causing, great and irreparable harm to Pragmatic Play and the public. The harm to Pragmatic Play includes harm to the value and goodwill associated with the PRAGMATIC PLAY Marks that money alone cannot compensate. Unless permanently restrained and enjoined by this Court, this irreparable harm will continue.

61. As such, Pragmatic Play is entitled to injunctive relief. Additionally, Pragmatic Play is entitled to actual damages and disgorgement of Defendants' profits, in an amount to be proven at trial, as well as prejudgment interest, costs, and attorney fees. *Id.* § 1114(1)(a)–(b).

COUNT TWO:
(Trademark Counterfeiting)

62. Pragmatic Play repeats and realleges each and every allegation set forth in the foregoing paragraphs, as though fully set forth herein.

63. Defendants are intentionally and knowingly using counterfeit versions of the PRAGMATIC PLAY Marks in connection with the gamblingcounting.com website that redistributes and/or displays unauthorized copies of Pragmatic Play's live casino games and the Pragmatic Play Marks by hosting unauthorized live data feeds of Pragmatic Play's live casino games.

64. Defendants have used spurious designations that are identical with, or substantially indistinguishable from, the PRAGMATIC PLAY Marks on services covered by the federal registrations for such marks, including, for example, the gamblingcounting.com website that redistributes and/or displays unauthorized copies of Pragmatic Play's live casino games and the Pragmatic Play Marks by hosting unauthorized live data feeds of Pragmatic Play's live casino games.

65. Defendants have used these spurious designations knowing they are counterfeit in connection with the advertisement, promotion, sale, offering for sale and distribution of goods and/or services.

66. Defendants' use of the counterfeit PRAGMATIC PLAY Marks on the gamblingcounting.com website to advertise, promote, offer for sale, distribute, and sell goods and/or services was, and is, without the consent of Pragmatic Play.

67. Defendants' use of the counterfeit PRAGMATIC PLAY Marks on the gamblingcounting.com website in connection with advertisement, promotion, sale, offering for sale and distribution of goods and/or services constitutes use of the PRAGMATIC PLAY Marks in commerce.

68. The unauthorized use by Defendants of the PRAGMATIC PLAY Marks as set forth above is likely to: (a) cause confusion, mistake, and deception; (b) cause the public to believe that the products and/or services offered by Defendants are authorized, sponsored, or approved by Pragmatic Play or that Defendants are affiliated, connected, or associated with or in some way related to Pragmatic Play; and (c) result in Defendants' unfairly benefitting from Pragmatic Play's advertising and promotion and profiting from the reputation of Pragmatic Play and the PRAGMATIC PLAY Marks all to the substantial and irreparable injury of the public and Pragmatic Play.

69. The aforesaid acts by Defendants constitute willful trademark counterfeiting in violation of Sections 32 and 34 of the Lanham Act, 15 U.S.C. §§ 1114 and 1116(d)(1).

70. As such, Pragmatic Play is entitled to injunctive relief. Additionally, Pragmatic Play is entitled to statutory damages of up to $2,000,000.00 per mark. *Id.* § 1117(c)(2). Alternatively, Pragmatic Play is entitled to disgorgement of Defendants' profits, treble damages

in an amount to be proven at trial, prejudgment interest, attorney's fees, and costs. *Id.* §§ 1117(a), (b).

COUNT THREE:
(Copyright Infringement)

71. Pragmatic Play repeats and realleges each and every allegation set forth in the foregoing paragraphs, as though fully set forth herein.

72. Pragmatic Play's Works include, without limitation, live performances of Pragmatic Play games, Pragmatic Play's logos, individual game logos, menu structures, color schemes, graphics, video and sound recordings, associated source code, and other materials created by Pragmatic Play for the display of online games by Pragmatic Play.

73. Pragmatic Play's Works are non-U.S. works that were first published outside of the United States and are exempt from the copyright registration requirements of 17 U.S.C. § 411.

74. At all times relevant hereto, Pragmatic Play has been and is the owner and proprietor of all rights, title, and interest in and to Pragmatic Play's Works.

75. Pragmatic Play's Works contain creative material wholly original to Pragmatic Play and are copyrightable subject matter under the copyright laws of the United States.

76. Defendants have infringed and continue to infringe on Pragmatic Play's copyrights by copying, distributing, altering, and/or displaying Pragmatic Play's Works through the gamblingcounting.com website.

77. Such copying, distributing, altering, and/or displaying of Pragmatic Play's Works was done by Defendants without the consent, approval, or license of Pragmatic Play.

78. The foregoing actions of Defendants have been knowing, deliberate, willful, and in utter disregard of Pragmatic Play's rights.

79. The above acts by Defendants violate Pragmatic Play's exclusive rights under Section 106 of the Copyright Act, 17 U.S.C. § 106, and constitute willful infringement of Pragmatic Play's copyrights under Section 501 of the Copyright Act, 17 U.S.C. § 501. Defendants have caused, and are causing, great and irreparable harm to Pragmatic Play and the public for which money alone cannot compensate.

80. As such, Pragmatic Play is entitled to injunctive relief, *id*. § 502(a), actual damages and profits in an amount to be proven at trial, *id*. § 504(b), costs and attorney's fees, *id.* § 505, and prejudgment interest.

PRAYER FOR RELIEF

WHEREFORE, Pragmatic Play respectfully requests of this Court:

A. That judgment be entered in favor of Pragmatic Play on its claims of trademark counterfeiting, trademark infringement, and copyright infringement.

B. That Defendants be required to pay Pragmatic Play statutory damages pursuant to 15 U.S.C. § 1117(c).

C. That, in the alternative, actual damages (trebled with respect to the trademark counterfeiting claim) be awarded against Defendants.

D. That Defendants be required to give an accounting and disgorge all profits earned from the operation of their website containing counterfeit PRAGMATIC PLAY Marks and Pragmatic Play's Works.

E. That the Court permanently enjoin Defendants and their officers, directors, principals, agents, servants, employees, successors and assigns, and all those in active concert or participation with them, jointly and severally, from:

i. Copying, distributing, altering, displaying, hosting, selling, and/or promoting Pragmatic Play's Works;

ii. Using any copy or colorable imitation of the PRAGMATIC PLAY Marks in connection with the promotion, advertisement, display, sale, offering for sale, manufacture, printing, importation, production, circulation, or distribution of any product or service, in such fashion as to relate or connect such product in any way to Pragmatic Play, or to any goods sold, manufactured, sponsored, approved by, or connected with Pragmatic Play;

iii. Engaging in any other activity constituting an infringement of the PRAGMATIC PLAY Marks or Pragmatic Play's Works, or constituting any damage to Pragmatic Play's names, reputation, or goodwill.

F. That those in active concert or participation with Defendants and those with notice of the injunction, including, without limitation, any web hosting providers, domain name registrars, domain name registries, CDN providers, certificate providers, payment providers, and/or email service providers, cease facilitating access to any or all domain names and websites or accounts through which Defendants engage in unlawful access to, use, reproduction, and distribution of the PRAGMATIC PLAY Marks or Pragmatic Play's Works;

G. That the domain name registry and registrar for the gamblingcounting.com website, or its administrator, place the domain name on registryHold/serverHold or such other status to render the domain name non-resolving;

H. That the Court order an award of costs and reasonable attorneys' fees, pursuant to 15 U.S.C. § 1117(a), 17 U.S.C. § 505, or as otherwise permitted by law, incurred by Pragmatic Play in connection with this action;

I. That Pragmatic Play be awarded pre-judgment interest and post-judgment interest on the above damages awards; and

J. That the Court order an award to Pragmatic Play of such other and further relief as the Court may deem just and proper.

Dated: October 5, 2026

By: */s/ Attison L. Barnes, III*

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